

Court No. - 40

Case :- WRIT - C No. - 17226 of 2018

Petitioner :- Bhure Khan @ Mohd. Jahangeer

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kuldeep Kumar

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for the respondent Electricity Department.

The petitioner has disclosed the fact of electricity connection existing in the name of his mother Smt. Salma. At the same time on a random checking on 06.12.2017 the raiding party reported a theft against the petitioner on the basis whereof an first information report under Section 135 of the U.P. Electricity Act, 2003 has been registered. On a query raised learned counsel for the petitioner submitted that no steps have been taken for getting the said allegation of theft compounded before the competent court. It is further submitted that on the basis of provisional assessment of Rs.7,64,643/- the petitioner has been called upon to deposit a sum of Rs.5,35,275/- by virtue of the citation of recovery issued in the name of the petitioner. Learned counsel submits that it appears that no final assessment order was passed and there is a variation between the amount of the provisional assessment order and the final assessment. Sri Chandan Agarwal prays that the matter be taken up on Thursday (17.05.2018) to enable him to obtain instructions in the matter. Sri Chandan Agrawal may obtain any copy of the final assessment order having been passed and also copies of any notices having been despatched to the petitioner prior to the passing of such final assessment order.

Put up on Thursday (17.05.2018).

Order Date :- 14.5.2018

R./

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Counsel for Petitioner :- Kuldeep Kumar

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for the respondent Electricity Department.

The challenge raised is to the citation whereby a sum of Rs.5,35,275/- is sought to be recovered from the petitioner on the ground of theft of electricity and the allegation that the petitioner had been utilizing electricity for charging his E-rickshaw.

The petitioner contends that the provisional assessment on the other hand indicates a sum of Rs.7,64,643/- but in the absence of any final assessment order the recovery has been set into motion without providing any opportunity to the petitioner.

The written instructions that have been received indicate that the petitioner did not move any representation against the proposed assessment and therefore the same was treated to be final but while issuing the citation only a partial amount was shown therein. We are unable to comprehend that if the assessment was final then why was the amount reduced and therefore there appears to be a clear discrepancy in the calculation and the demand raised. Secondly, the final assessment order does not appear to have been passed without any objection being received from the petitioner as is required under Clause 8.2 (b) of the U.P. Electricity Supply Code, 2005. Consequently on both counts the recovery can not be made from the petitioner.

We accordingly allow the writ petition and quash the citation dated 01.05.2018. We further direct the petitioner to file objections before the respondent no.4 within two weeks from today. The respondent no.4 shall pass an appropriate order within six weeks thereafter. The writ petition is allowed subject to the aforesaid directions.

Order Date :- 17.5.2018

R./